ENCROACHMENT PERMIT APPLICATION

BOONE COUNTY PUBLIC WORKS

Boone County Public Works Department
5645 Idlewild Rd, Burlington, KY 41005
Phone: (859) 334-3600

All information except signature must be typed or legibly printed
NOTIFY COUNTY 7 WORKING DAYS BEFORE WORK IS TO BE STARTED

PROPERTY OWNER

Property Owner's Name:
Phone:
Mailing Address (If Different):
Property Address:
Email Address:

WORK PERFORMED BY

Work will be performed by: ☐ Contractor ☐ Property Owner
Contractor's Name:
Phone:
Address:
Email:

Applicant is: ☐ Property Owner ☐ Property Owner's Agent ☐ Contractor ☐ Other: _____

I / WE, the undersigned, hereby apply to the County of Boone for an encroachment permit to do the following work under or over the County roads and highways, all in accordance with County ordinances and general laws.

Signature:
Date Signed:

LOCATION

Road affected:

Time and Duration of Encroachment: ☐ Permanent Encroachment ☐ Temporary: From_____To _____

Type of Encroachment:
☐ Farm Entrance
☐ Pipe/Pipeline
☐ Residential Entrance
☐ Commercial - $200 fee
☐ Industrial - $400 fee
☐ Other _____
☐ Utility
☐ Sign/Billboard
☐ Landscaping

Site Plans Attached:
☐ YES ☐ NO

PERMIT CONDITIONS

Fully Describe Work Within County R/W: Attach complete plans, spec's calc's, maps, etc., if applicable.

FOR COUNTY USE ONLY

Fee:
Commercial ☐ Industrial ☐

Date Issued:	Encroachment Permit #	Building Permit #:

Date Paid:	Amount Paid:	Paid By:	Check No:	Receipt No.:

Approved By:
Date:

District:
Inspected By:
Inspection Results: ☐ Completed - OK ☐ Completed – Not OK ☐ Additional Comments Attached

Comments:

OPEN CUT CROSS SECTION – PAVEMENT REPLACEMENT

Hyperlink Sources Below

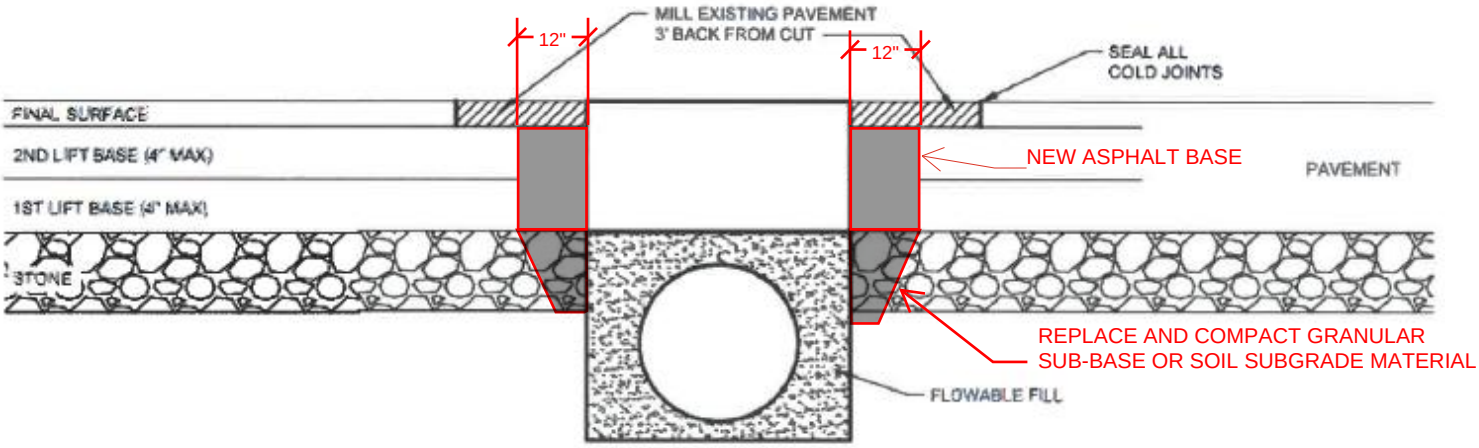
Boone County Subdivision Regulations

https://boonecountyky.org/planning_commission/2014subregs.php

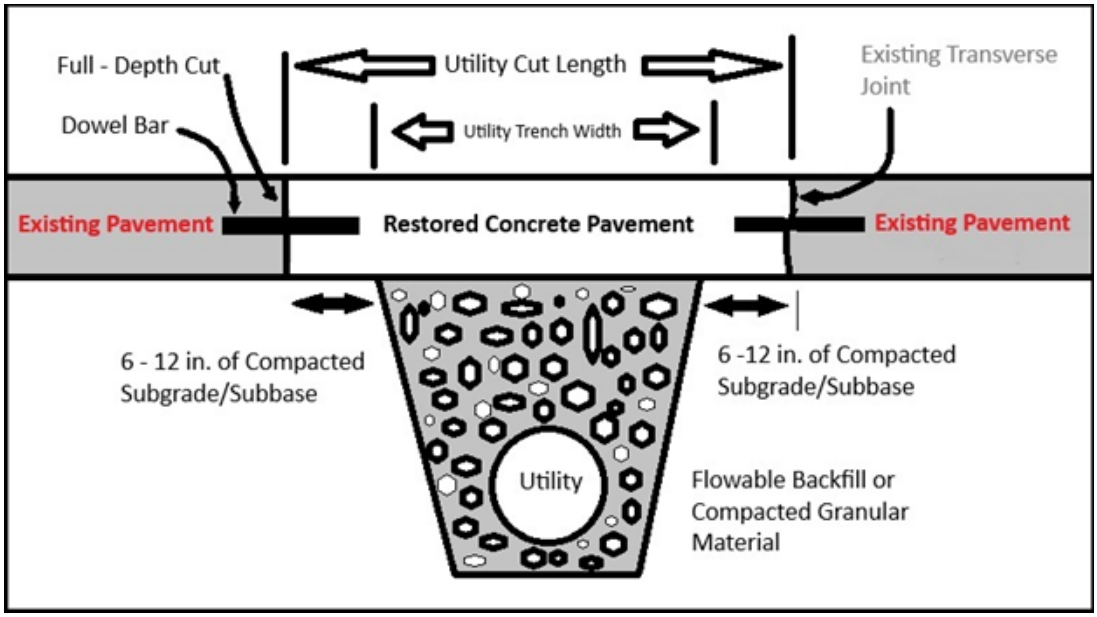
Boone County Zoning Regulations

https://online.encodeplus.com/regs/boonecounty-ky/doc-viewer.aspx#secid--1

Asphalt Pavement - Match Existing



Concrete Pavement - Match Existing



BOONE COUNTY
PUBLIC WORKS

The applicant agrees to the following terms and conditions:

1. The applicant shall comply with and is bound by the requirements of the Boone County Public Works Department's Regulations.
2. Applicant agrees that if the Department determines that vehicular capacity deficiencies or over capacity conditions develop as a result of the installation and use of this facility, the applicant shall adjust, relocate or reconstruct the facilities and/or provide and bear the expense for signs, storage lanes of other corrective measures reasonably deemed necessary by the Department and set forth in the Department's Regulations within a reasonable length of time after receipt of written notice regarding such adjustments, relocation, additions modifications and/or corrective measures, such time to be specified in the notice.
3. The said encroachment will not infringe on the frontage rights of an abutting owner without written consent of the said owner as hereto: "I (we) consent to the granting of attached permit." Date:_____ (This does not apply to utilities which serve the general public).
4. Any permit granted hereunder shall be with the full understanding that it shall not interfere with any similar rights or permits heretofore granted to any other party except as otherwise provided by law.
5. A plan prepared by _____ and dated _____ is attached hereto and made a part hereof, which describes the facilities to be constructed by the applicant for which facilities this permit is granted. The applicant agrees as a condition to the issurance of the permit to construct and maintain such facilities in accordance with said plan, and the applicant shall not use the facilities authorized herein in any manner contrary to that prescribed by this permit and plan. Normal usage and routine maintenance only are authorized under this permit.
6. Applicant shall comply with the Manual on Uniform Traffic Control Devices as revised to and in effect on the date of the issuance of this permit which is made a part hereof by reference.
7. Applicant shall at all times from date when work is first commenced and until such time as all facilities are removed from the right-of-way premise, defend, protect and save harmless the Department from all liability, claims, and demands arising out of work undertaken by the applicant pursuant to this permit, due to any negligent act or omission by the applicant, its servants, agents employees or contractors. This provision shall not inure to the benefit of any third party or operate to enlarge any liability of the Department beyond that existing at common law if this right to indemnity did not exist.
8. Upon a violation of any of the provisions of this permit, the Department may revoke the permit by giving notice to the applicant in writing to remove from the right-of-way nay facilities placed thereon within a reasonable time as set forth in the notice, and in the event said facilities are not so removed, and the right-of-way restored the Department may cause same to be removed, and the costs thereof shall be charged to the applicant.
9. If the work authorized by this permit is on a project in the construction phase, it shall be the responsibility of the applicant to make contact the Inspection Services Division of the Boone County Public Works Department
10. This permit does not alleviate any requirements of any other government agency.
11. Applicant agrees to keep the priority route in which this permit was issued clear of dirt, mud and debris during construction and for the life of this permit.
12. An asphalt concrete or Portland Cement concrete apron, of a minimum of 19 feet in length for the width of the driveway, shall be provided from the edge of the paved portion of the street upon which the driveway is encroaching (per section 3314 of the Boone County Zoning Regulations).
13. There will be a charge-out of all materials, to the applicant, IF Boone County installs the culvert. (ORD. 620. 6A.)
14. This application will become void one (1) year from applicant signature date. Applicant must contact Engineering Services when the work is complete. (859) 334-3600.

Applicant Signature: _____ Date: _____

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